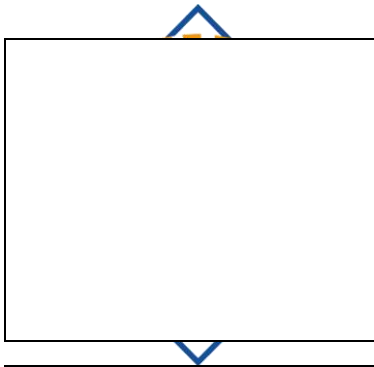




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**The Telephone Consumer Protection Act
of 1991 (TCPA)**

**Health Insurance Portability and
Accountability Act of 1996 (HIPAA)**

And

An Overview of New Noble Screens

Participant's Guide

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Introduction

Greetings and welcome!

In the following session, we will be discussing a couple of exciting changes that will soon improve your day-to-day operations at EOS.

These changes include the following items:

- First, we will have a brief discussion of (HIPAA), the Health Insurance Portability and Accountability Act of 1996.
- Then we will introduce you to the Telephone Consumer Protection Act of 1991, or TCPA for short, another Law that now affects Early Out Services.
- Finally, we will be discussing some New Noble Screens, including a couple that will directly affect how you verify both the HIPAA and TCPA requirements.

Let's begin!

Health Insurance Portability and Accountability Act of 1996 (HIPAA)

HIPAA

Introduced in 1996, HIPAA was designed to protect the rights of workers and their families when they change or lose their jobs. However, this was not the only feature. In addition to the portability aspects of HIPAA, there were privacy aspects as well. That is why, as a part of HIPAA, we are required to verify certain key pieces of patient information before disclosing any specific details about the account to the caller.

These key elements, or Individually Identifiable Health Information, help to ensure that the person we are talking with has the authority to be in this account. We need to ensure that we are speaking with the Patient or their authorized representative prior to discussing account details.

Let's take a closer look at this.

Requirement

HIPAA is not optional. HIPAA verification must take place on every inbound call. You cannot simply skip over the HIPAA verification.

Let's explore the procedure further.

HIPAA Verification (Inbounds)

Scenario 1: Incorrect

In this scenario, Justin, our PAR, gets a call from a Patient. Let's take a look at what happened.

Justin: Thank you for calling our Hospital Business office. My name is Justin. How may I help you?

Mr. Smith: I am calling about my account. I shouldn't have these charges.

Justin: I can help you, Mr. Smith. Our screen has populated some information about your account. Are you still on 45th Street in Omaha, NE 68114? Phone number 402-555-1212?

Mr. Smith: That is correct.

Question: Did Justin do the HIPAA Verification piece correctly?

Answer:

Rationale for Inbound Call Verification

Since you do not know who is on the other end of the phone, you are required to verify upfront the identity of the caller and their authority to have access to that patient information. That is the most important part of HIPAA.

Verification includes having the caller verify up to 4 standard pieces of Protected Health Information (PHI), depending upon the client's requirements:

- Name
- Address
- Phone Number
- Date of Birth
- Last 4 of SS#
- Account Number

NOTE: Please remember, if it is the caller's intent to pay, we can still discuss the balance due once we determine we have the correct account. If the caller desires further information about the account, you may not release any additional information without first verifying their authority to discuss the account or getting a verbal or written permission from the Patient or Responsible Party. In this instance, you may discuss only the date of service and the balance due.

Verbal Authorization to Speak With Someone Other Than the Patient

Question: What happens if someone other than the patient or RP calls in to discuss account specifics? Will it be possible to discuss information with someone other than the Patient or RP over the phone?

Answer:

Scenario 2:

Justin: I would need to get verbal authorization from the Patient to speak with you regarding this account. Is the Patient available?

Spouse: He sure is. Let me put him on. (Phone is handed over to another person.)

Patient: This is John Smith.

Justin: John, I just need to get your permission to discuss this account with your spouse. Is that ok?

Patient: Sure, it is ok.

Justin: Ok, I will be happy to speak with your wife again. (Phone is handed back to the original caller.)

Question: Was this verification handled properly?

Answer:

Summary

Remember, HIPAA verification on inbound calls is not an option, is required. Any deviation from this will result in a HIPAA violation and could result in disciplinary action up to and including termination.

Next question: how do outbound calls differ from inbound? Let's take a look.

Updating Account Information (Outbound)

Question: Who here can tell me the difference between updating and verifying accounts?

Bonus Question: True or False. The only person able to update information on their account would be the Patient or RP.

Verification for Outbound Calls

The primary purpose of outbound calling is the collection of owed money. But what if the Patient or RP is not able to recall the details of the visit and needs further information? Then, at this point, it may be necessary to verify who it is you are speaking with.

In this case, simply asking them to verify their HIPAA information provided previously, you will be able to determine you are speaking with the correct person.

Once verified, you may discuss details about the account. However, keep in mind the minimally necessary rule. Don't give them every last detail, only what is necessary to get them to pay on their account.

Key Points

When verifying and/or updating the account, the PAR will state things such as the following. Do not use the following terminology:

- We are required to verify this information...
- For HIPAA purposes, can I get your...
- HIPAA makes us ask this...
- It is just our procedure to update this information.

You may use the following terminology:

"For verification purposes, please verify your name, address, and phone number (Client Specific)"?

Or for Updating Account Information:

"Before I let you go, let me ensure the account information is up to date." Then ask them the required questions. If they refuse, then note the account.

Worst Case Scenario

You have a caller who refuses to provide you with any HIPAA verification information. What do you do?

As the PAR:

- Never get into an argument with them.
- Do not become defensive.
- Never quote them HIPAA Law. Keep HIPAA out of the conversation.
- Transfer them over to a Supervisor if needed. (Only if they are unwilling to provide info.)
- Never hang up on the caller!
- Remain Calm!

Verbiage

Instead, you may use verbiage such as the following to ensure that you explain why it is necessary to get this information prior to disclosing details about the account.

"I understand you have questions regarding your account, and I will be willing to help you. However, before discussing details about this account, it is important to confirm your identity. This allows me to ensure I am releasing account information to the correct person."

HIPAA Penalties

HIPAA verification is not an option! Failure to verify HIPAA-related information prior to releasing PHI can cost you.

Penalties: Privacy rule violations can be punished with both civil and criminal penalties. Meaning it affects both the worker (YOU) and the organization (EOS). Additionally, any violation of the HIPAA policy at EOS can lead to disciplinary action up to and including termination.

Brief Question and Answer Session

Telephone Consumer Protections Act (TCPA) Introduction

Question:

What wakes us up in the morning, interrupts our dinner at night, and forces the sick and elderly out of bed?

Answer:

IMPORTANT NOTE: Although we are not technically Telemarketers or selling anything, we still fall under this Law.

In addition, according to the Federal Communications Commission (FCC) the top 2 complaints they receive from people are:

1. "Phone calls from people selling things" and,
2. "Phone calls from computers trying to sell something."

Introduction

In this next section, we will be discussing the Telephone Consumer Protection Act, or TCPA, for short.

The TCPA was the first federal law regulating the actions of legitimate telemarketers. Its purpose was to strike a balance between protecting the rights of consumers and allowing businesses to use telemarketing effectively.

Regulated by the Federal Communications Commission (FCC), this law requires telemarketers to formalize their existing policies and, where necessary, create new ones to bring their operations into compliance.

Originally, this did not affect EOS, due to the existing relationship between our clients and their customers. New insight into this law has uncovered some areas that impact EOS.

In the following section, we will discuss these areas and how they impact calling at EOS.

Purpose

The purpose of passing the TCPA was to protect the privacy of people like you and me by placing certain restrictions on the unsolicited, automated phone calls made by telemarketers to consumers who had no existing relationship with them.

For example:

- Having an unlisted number didn't prevent the calls because numbers were dialed randomly.
- The numbers dialed sometimes tied up lines meant for emergency purposes, such as hospitals, fire, and police stations.
- Would also tie up the lines of the entire company and prevent any outgoing calls.
- Unsolicited advertisements sent to fax machines.
- Calls to pagers, cell phones, or any other service for which the called party is charged for a call. **These are the main reasons for the change in EOS procedures.**

Overview of the New Procedure

In order for EOS to comply with this legislation, we will start gathering permission to contact the Patient through their phones, regardless of whether the phone is a cell phone or land line, and regardless of whether we are calling the person back or the call is made by the dialer or IVR.

If this verification piece is not followed correctly, it could result in EOS getting fined.

This does not mean the Patient will never be called by EOS. Far from it!

The purpose of this Law is to ensure that people will not be called by a dialer or IVR system. Calling to the Patient or RP will continue, but they will be done manually instead of through a dialer or automated system.

Mandatory EOS Message Script:

To ensure compliance with the TCPA, we will begin asking for permission to call their phones. This scripting will be used on every initial call received or placed by EOS.

Required Scripting:

"Is it OK to call any cell or number on any account we may get for you, and leave a prerecorded message or voicemail, using our autodialer?"

- If they respond with a **Yes**, you will click Yes on the Noble screen to validate.
- If they respond with a **No**, you will click on the No in the Noble screen.

Additionally, if they select No, we will continue to ask for this permission every time we call. Until they say Yes. Then once it is verified, you will no longer need to use the verification piece, and the screen will not appear in Noble.

Dispositions

When the account has been marked N on the TCPA question on the new Noble screens, the account will "automatically" be moved into **3NDL** during the nightly process.

The account will stay in 3NDL unless we are moving it through the other dispositions for handling, such as 3600, 3INS, 3100, etc. Once the account is moved out of a pending disposition and back into a calling disposition, there are safeguards in place to move them back to 3NDL to avoid it hitting the automation of calls.

Important

You can ONLY click "NO" to remove calls from the auto dialer if the RP and/or Patient requests it.

There will be clients that allow us to speak to the spouses (like MHS) so on those clients, as long as we validate the person we are speaking to is responsible for the bill, we can make the changes based on their request.

If we are not authorized via HIPAA to speak to that person, then we will not be asking the TCPA question. You will document the account right there on that screen and not move any further.

If it is the caller's intent to pay, you may use the 'bypass' button and not answer Y or N on the TCPA question, but only if it is the caller's intent to pay on the account. Do not release any additional PHI.

Multiple Seed Accounts

In the event you have entered your notes in Noble and passed them to a FACS account, but want to send those same notes to another account (such as in the case of PCI and MHS or CHM and CHP), who are working on the same call, at the same time. You will just need to bring up the other seed account in FACS, go to the window prompt, and hit SEND again from the Noble screen.

Do not do this across clients in the case of using MHS and CHP. Remember, transparency.

Note: If you are talking about a PCI account and were told 'no' on the TCPA question, and then they also talk about a Methodist account, you should go to window 800 and update the TCPA field with an N and the date of the refusal or with a Y and the date of the acceptance if that is the case.

Insurance Reps Only:

Insurance reps are to hit the 'bypass' button on the HIPAA screen if they are receiving calls from insurance companies.

You will only ask the HIPAA and TCPA questions if you are speaking to a patient and/or RP.

Insurance/PAR Important:

You are ONLY to use this 'bypass' button if the person you are speaking with has the intent to pay, or it is an insurance company representative.

Anyone using this to bypass inappropriately (meaning, you purposely bypass the TCPA question or HIPAA question because they don't like to ask it) will be subject to disciplinary action.

Question:

"Why do we have to start asking for cell phone permission? I thought just by getting their signature at the hospital, we could call them?"

Answer: Actually, that is a great question! The violation of the TCPA occurs when an autodialed call is made to a cell (wireless) phone without the **prior express consent** of the called party. Initially, at the hospital, they did not specifically authorize us to call them in this manner.

TCPA Penalties

The individual who receives a call after a name removal request has been given to the caller is granted a private right of action in a local court and may sue for \$500 in damages for **each** violation.

1. In some cases, the courts can levy triple damages. Similar suits may be filed for violations of the TCPA's provisions regarding faxes, auto dialers, and artificial or prerecorded messages.

For example, we can call a patient's phone number 2-3 times a day if we keep receiving no answer. If we do not have permission to call with our auto dialer, this ONE day for this ONE account could cost \$1500.00. You can see how quickly this can add up.

2. States may initiate civil action against offending companies on behalf of their citizens.
3. Complaints may be filed with the Federal Communications Commission, which has the power to assess penalties against parties in violation of the TCPA.

New Noble Screens

In this next session, we will be discussing some changes that will take place to your Noble Screens.

As you know, HIPAA and the TCPA are now very important components of our calls. To ensure that they are being verified, screens have been created that require acknowledgment of the TCPA question prior to moving on with the account.

Let's take a quick look.

New EOS / Noble Screens

The Initial Screen

The purpose of the Initial Screen is to serve as a reminder that you are to be in the proper place in FACS.

Noble HIPAA Verification Screen

Since verification of HIPAA is required on all inbound calls. This screen will not only show you the initial scripting specific for each client, but will require you to verify HIPAA, using the patient identifiers appearing on that screen. This will ensure that you are speaking with the correct person and that they have the authority needed to discuss that account.

Noble Lookup Screen

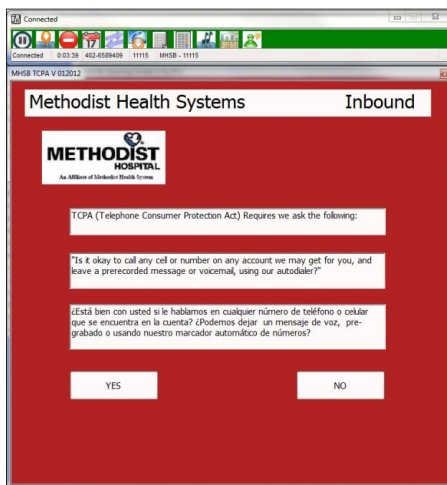
Baphone	special_access	patient_id	rphome	client_number	medow_number	client_access	account
40177213		402411617	99999	99999	99999	99999	99999
402808191		57952792	70253080	7025	5396220	425423	
402524705		081407149		122848		073010035515	4542094

When you make or take a call, inbound or outbound, you will now be presented with a noble lookup feature similar to when you take inbound calls. This look up button must be used prior to ending your conversation in order to get credit for the call. Additionally, you will primarily use this when you do not have an account to associate your call back with.

Not In Look Up Screen (Use FACS)

The "Not In Lookup" screen will be launched if they press the "NOT IN LOOKUP" button on the HIPPA permissions page. The means the account is no longer accessible though Noble and will need to be worked from FACS.

TCPA Verification Screen

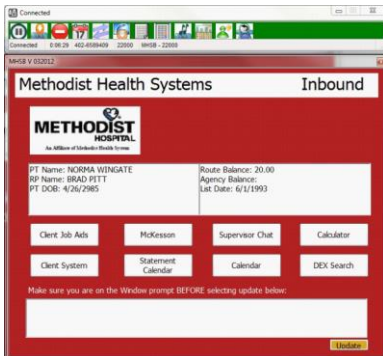


This TCPA screen will require you to ask the following question exactly as it is written:

"Is it OK to call any cell or number on any account we may get for you, and leave a prerecorded message or voicemail, using our autodialer?"

By acknowledging this screen, you will be moved to the next screen, where you will be able to provide specifics about the account, regardless of a Yes or No answer.

Account Main Screen



The final Screen will be a screen with all the appropriate tools needed for your job. From this screen you will have access to all the major items you could potentially need on a call. For example: you will see the PT and RP name and PT DOB. You will also see all the balance information from the Route and Agency balances.

Screen Information

Additional Information includes (Client Specific):

- Client Cheat Sheets
- Client System
- Supervisor Chat
- McKesson (MHS accounts only)
- Statement Calendar (MHS accounts only)
- Calculator
- Calendar
- Dex Search

FACS Notes

One exciting new feature of this screen is the ability for you to type in your notes.

In that field at the bottom of the page, you will find a spot for you to type all your documentation notes in Noble. The notes are entered directly into FACS by documenting and pressing the "Update" button.

NOTE: You may press the Update button at any point you feel necessary. That means you can document key components of the conversation and press update. This information is transferred over to FACS. This is especially useful if you forgot something. Simply add it and press Update.

ADDITIONAL NOTE: For this Update feature to work properly, you must be at your Windows **Prompt** in FACS. If you are not, it could potentially change important information on the account.

IMPORTANT NOTE: Windows 10 notes will still need to be done manually through FACS. There are no buttons on Noble for Windows 10 notes, and you will still need to put in the disposition, wait, and due date.

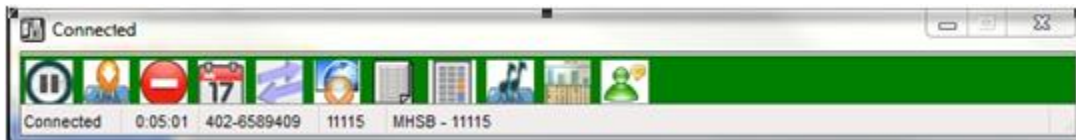
Hang Up and Terminate Calls

The final section we will cover involves the Hang-up and Termination of your calls.

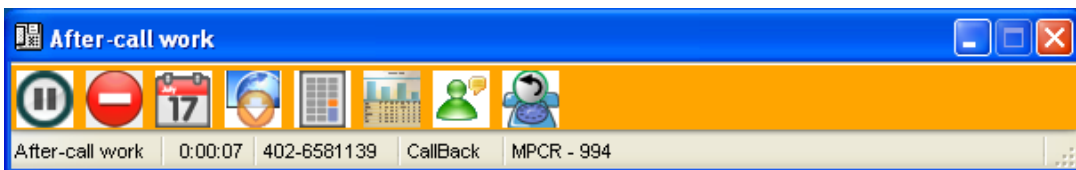
Hang up a Call

1. To hang up a call, click the *Hang up* () button on the toolbar.

NOTE: This will disconnect the call but not advance you to the next account. You will be placed in after-call work. Should you need more time to complete your disposition, notes, and any other manual items, it may be necessary to stay in after-call work to complete the update of your account. Once you have completed your documentation in FACS, you will need to terminate the call and move on to the next account.



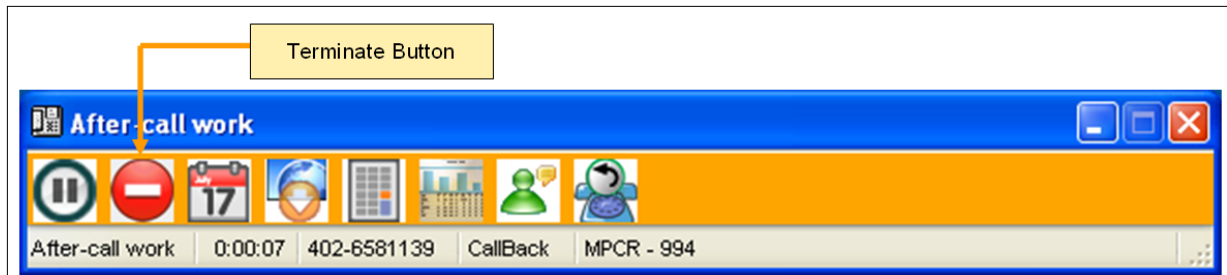
In fact, any time a call ends or the patient hangs up on you, you will automatically go to an after-call work status.



You will only need to click on the hang-up button when you want to disconnect the call, such as after you leave a voicemail message. Once the call disconnects, the hang-up button will no longer appear; in its place will be the terminate button. Do not press the terminate button until you are ready to move to the next call.

Terminate a Call

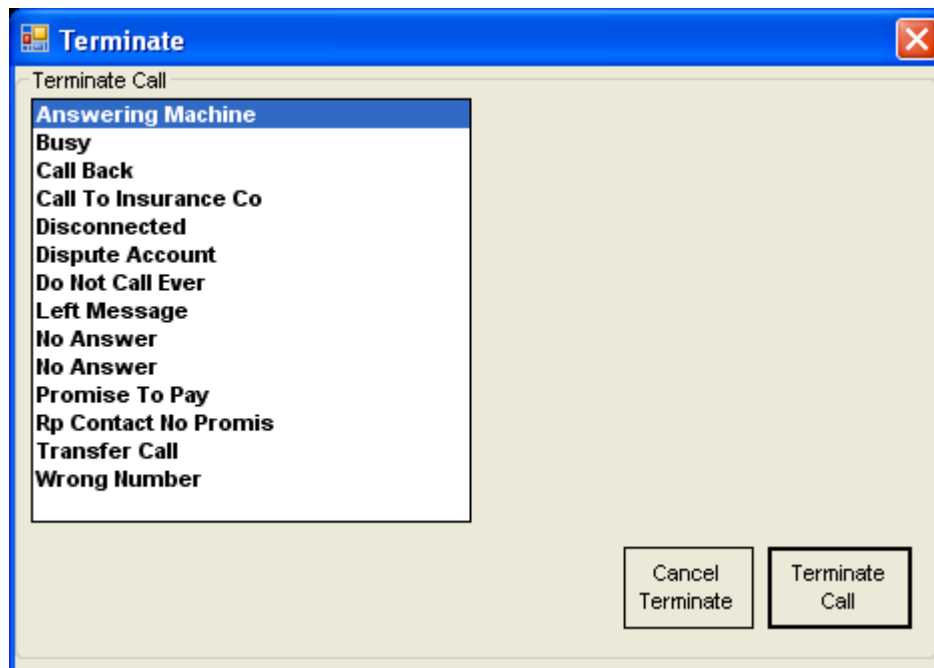
To terminate a call, you will need to follow several steps.



Caution: When you terminate a call, the next call will immediately come through, which means if you are not done with your work, you could lose all your information. Be sure you are completely finished before selecting terminate.

1.

Click on the *Terminate* () button on the toolbar, and you will be presented with various disposition options. Please select one that best suits what needs to be done with the account, then select *Terminate Call*.

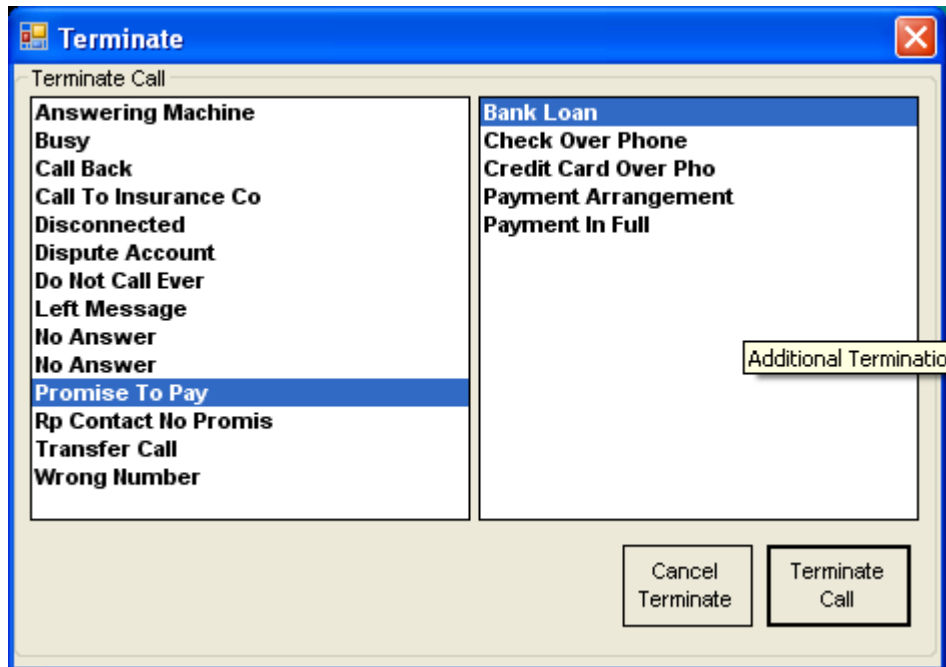


You may also be presented with an additional Addie Status code.

Addie Status

This is the term used to describe additional status codes for such things as payment. For example, if you select Inbound Payment, you must also select Credit Card.

2. Select the desired termination status code and, if required, add status for the call.



3. Click *Terminate Call*.

Important Reminder

Ensure you have documented all the required items prior to pressing Terminate Call. Because once you press Terminate Call, the next call waiting could come through.

Conclusion

In conclusion, utilization of our new screens regarding both TCPA and HIPAA is mandatory. If these are not followed appropriately, you could receive disciplinary action up to and including termination.

These other screens have been designed to make your job easier and make sure that the procedures are being followed, so we do not bypass anything.

IMPORTANT NOTE: If at any point, any of these features are not working correctly, let your manager know immediately.

Overview:

1. Make sure you are verifying all HIPAA requirements prior to releasing Protected Health Information.
2. Verify TCPA or whether or not you can contact them with dialer or IVR calls to their cell phones, and document the correct screen.
3. Make sure to utilize the new Noble screens tools for noting your accounts.

NOTES:

[illegible]

Assessment

1. HIPAA Verification is required on all calls, both inbound and outbound.
 - a. True, it is required on inbounds as the identity of the caller is not yet known.
 - b. True, on outbound, the identity may be known, but to ensure you are speaking with the correct patient, you must first confirm the identity prior to release of accounts-specific information, other than the balance due.
 - c. False, it is only required on inbounds.
 - d. Both a and b are correct.
2. Verification must include having the patient verify 4 standard pieces of Protected Health Information (PHI), which includes the:
 - Name
 - Address
 - Phone Number
 - Date of Birth
 - or Last 4 of SS#
 - a. True
 - b. False
3. The purpose of passing the TCPA was to protect telemarketers by placing certain restrictions on the unsolicited, automated phone calls made.
 - a. True
 - b. False
4. After reading the mandatory scripting: "Is it OK to call any cell or number on any account we may get for you, and leave a prerecorded message or voicemail, using our auto dialer?" If the patient states No, they do not wish to receive phone calls; all future calls will cease for the patient.
 - a. Yes – To respect their rights under the law, all future calls will cease, and only letters will be generated to communicate with the patient.
 - b. No – Only future dialer or computerized dialer calls will cease; manual calls to the patient will continue until the debt is cleared up.

5. Search Criteria for the Noble Look Up includes all of the following?
- Phone Number: Ex: 4021234567
 - Account Number: FACS Number: 3597751
 - First and Last Name: John Smith (Include the (*) for a more comprehensive search.)
 - Client Account Number: This is the patient's account number.
- a. True
b. False

Individual Training Sign-In Sheet

List a reason for this event (Role Change, Refresher, Client Specifics, NCAR, etc.):

TCPA / HIPAA / New Noble Screen

If reason listed is an NCAR, provide NCAR# _____

Employee Name: _____ Training Date: _____

Position: _____ Trainer: _____

Hours _____

Subjects Covered – initial all that apply.

Please type an explanation, if needed, in the appropriate box below.

Example: Refresher Training – FDCPA, Client Specific – Children’s Hospital.

Initial #
Hours
Each

Meeting		
Refresher Training		
Client Specific		
New Client training		
Coaching, Counseling session		
Compliance requirements		
Policy and Procedure requirements		
Building security requirements		
Employee Status Change		
SharePoint		
Systems		
Job Description		
Work Instruction#		
Other – list specific training in the space below.		

Specific Training – initial all that apply.

New Noble Screens		
New Telephone Consumer Protection Act		
Health Insurance Portability and Accountability Act Refresher		

I have received and understand the training indicated above.

Signature: _____ Date: _____

Entered in Employee Training Records Date _____ Initials _____